EXPLAINER

Canon law and theology

The Church's law and the Church's teaching are not the same thing, and the order between them matters. Law serves teaching, never the reverse. Getting that order right changes how you read almost every canon.

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Which comes first

St. Thomas Aquinas defined law as "an ordinance of reason for the common good, made by him who has care of the community, and promulgated" (*Summa theologiae* I-II q. 90 a. 4). A law is an act of reason, not of bare will; it exists for the good of the whole; it comes from someone with real authority; and it has to be made known. Church law fits the definition, and the Code itself begins with promulgation c. 7.

Aquinas went further. Human law, he said, has the character of law only insofar as it is derived from the higher law written into creation and revealed by God. "If in any point it deflects from the law of nature, it is no longer a law but a corruption of law" (q. 95 a. 2). A law contrary to the divine good "must in no way be observed" (q. 96 a. 4). The Code says the same in its own idiom: a lower authority cannot validly act contrary to a higher one c. 135 §2, and no dispensation can touch divine law or what essentially constitutes an act cc. 85–86.

Two cautions keep this from being misused. First, the presumption runs in favour of the law. A law validly made by the competent authority is presumed reasonable and for the common good; the burden is on anyone who says otherwise, and "I find this burdensome" is not the same as "this contradicts God's law." Second, Aquinas himself notes that even a law that is unjust in a lesser way may still be obeyed to avoid scandal or disorder. The principle protects conscience against real contradiction; it does not license private exemption from laws one dislikes.

What law can do, and what it cannot

Law can **presume**. It cannot know whether two people consented validly on their wedding day, so it presumes that every marriage is valid until the contrary is proven c. 1060. It cannot read a defendant's heart, so it presumes innocence until the contrary is proved c. 1321 §1. A presumption is a rule for acting under uncertainty, not a claim to have resolved it.

Law can **give a truth a determinate shape**. Marriage is made by consent (a truth about marriage), but the Church decides that Catholics must exchange that consent before an authorized minister and two witnesses cc. 1057, 1108. The faithful should receive the Eucharist worthily (a truth about the sacrament), and the law fixes the age of first Communion, the fast before it and the Easter duty cc. 913, 919, 920.

Law can **protect rights**: to the sacraments, to a good name, to a hearing cc. 213, 220, 221. I describe these in your rights in the Church.

Law cannot **establish a truth**. When the Code speaks of what must be believed, it does not define it; it refers to what the Church's teaching office has proposed cc. 750, 752. If a canon were used to settle a doctrinal question, something would have gone wrong in the order of things. Law cannot **judge a soul**; more on that below. And law cannot **change doctrine**. A pope can rewrite the penal book, as happened in 2021. No one can legislate that a consummated sacramental marriage is dissoluble c. 1141; see indissolubility explained.

Divine law and merely ecclesiastical law

The Code distinguishes between norms that restate divine law (natural or revealed) and norms that are "merely ecclesiastical," made by the Church's own authority for the good order of the community. Only the second kind can be dispensed c. 85, and only the second kind is limited in whom it reaches: merely ecclesiastical laws bind those baptized in the Catholic Church or received into it, who have sufficient use of reason and have completed their seventh year c. 11.

A few examples make the line clear. That one must worship God is divine law; that Catholics do so by attending Mass on Sundays and the holy days their bishops have set is ecclesiastical determination c. 1247. That marriage requires free consent is natural law, and binds every human being; that Catholics must marry before a priest or deacon is ecclesiastical, and binds only Catholics c. 1117. The same act, placed by a Catholic adult, by a Catholic child of six and by a Lutheran neighbour, has three different standings under a merely ecclesiastical law: the first is bound, the second and third are not. Under divine law all three stand alike. Eastern Catholics are bound in the same way by their own code.

The external forum and the internal forum

The Church exercises its power of governance normally in the *external forum*, the public order of records, decrees and judgments, and only sometimes in the *internal forum* of conscience c. 130. The distinction is not a technicality. It is the Church's refusal to claim knowledge it does not have.

A tribunal can establish that an act was done and that it was of a kind the law forbids. It then presumes imputability, and that presumption can be rebutted by what appears outwardly c. 1321 §4. What it never does is compute the state of a person's soul. The *Catechism* puts it exactly: "Although we can judge that an act is in itself a grave offense, we must entrust judgment of persons to the justice and mercy of

God" (CCC 1861). A canonical finding of guilt is a finding in the external forum, for the external forum, and it says nothing about anyone's standing before God. The seal of confession c. 983 and the rule that a person conscious of grave sin should not receive Communion without first confessing c. 916 both live in the internal forum, where no judge enters.

Why the Code quotes the Council

Readers are sometimes surprised to find whole sentences of the Second Vatican Council in the Code: the description of the People of God, the equality of all the baptized, the role of the laity cc. 204, 208, 225. When Pope John Paul II promulgated the Code he described it as an effort to translate the Council's teaching about the Church into canonical language. The canons quote the Council because the law is meant to be read in the light of the teaching, not the other way round. When a canon is unclear, its purpose and the mind of the legislator are among the keys to it c. 17, and that mind is a theological one.

Two different kinds of sentence

"The Church teaches that X is a sin" and "the Code imposes penalty Y" sound parallel. They are not. The first is a statement about a kind of act, made by the teaching office, true or false regardless of what any legislator does. The second is a statement about the external forum: that a person who does an act of this kind, with the imputability the law requires, after the procedure the law requires, incurs a defined consequence cc. 1321, 1341–1342.

Most sins carry no canonical penalty at all. Deliberately missing Sunday Mass is grave matter in the Church's teaching; no canon punishes it. Penalties exist only where the law establishes them, and the law is told to establish them only insofar as they are really necessary for discipline c. 1317. Conversely, some canonical crimes are defined by their public consequences more than by the interior gravity of the act. The two lists overlap, but neither is derived from the other. It does not follow that the Church is indifferent to sins it does not punish, nor that someone acquitted by a tribunal has been declared holy. See canonical crimes explained.

The pastoral consequence

Because law is ordered to teaching, it is a floor, not a ceiling. The Code sets the minimum that a community of believers can be held to in the external forum, and it fences off certain rights so that no one, however well-meaning, can take them away. It does not measure holiness. The saint and the lukewarm parishioner may stand identically under the law, and the law is content with that; its last canon tells it to keep the salvation of souls in view and to leave the rest to God c. 1752.

This is good news for people in hard situations. The law's protections do not depend on anyone's opinion of you. And its limits mean that no decree, however harsh it feels, is the Church's last word about who you are.

In practice: when you read a canon, ask which kind of statement it is making. Is it restating divine law, or making a changeable determination? Is it presuming something, or asserting it? Is it speaking to the external forum, or reaching toward conscience, where it does not go? Most of the confusion I meet in consultations comes from running those together.

KEY TEXTS

- **ST I-II q. 90 a. 4** the definition of law
- **ST I-II q. 95 a. 2; q. 96 a. 4** a law against higher law does not bind
- **c. 11** whom merely ecclesiastical law binds
- **cc. 85–86, 135 §2** what cannot be dispensed or overridden
- **c. 130** external and internal forum
- **c. 1321** presumptions in penal law
- **CCC 1861** judgment of persons left to God
- **c. 1752** the salvation of souls

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